CQC STATUTORY REQUIREMENTS & OPERATIONAL FULFILLMENT GUIDE

Exhaustive Clause-by-Clause Audit of Regulations 4 to 20 (HSCA 2014), Physical Property Specifications & Staffing Matrices

Applicant Body	ADOV Care Group LIMITED (OpCo)	**Subject Campus**	78 & 80 Marston Gardens, Luton, LU2 7DY (Specialist Autism Supported Living)
Statutory Instrument	Health and Social Care Act 2008 (Regulated Activities) Regulations 2014	**Lead Regulatory Officer**	Healthcare Regulatory Compliance Team // Project Planned by AbdullahMamun.com
Compliance Scope	Regulations 4, 5, 6, 7, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20	**Version Status**	Statutory Boardroom Edition (October 2026)
Inspection Framework	CQC Single Assessment Framework // Right Support, Right Care, Right Culture		

17
Key Regulations
HSCA 2008 Regulated Activities

100%
Fulfillment Rate
Zero statutory compliance gaps

12.5m² - 16m²
Bedroom Sizes
Exceeds CQC domestic standards

BS 5839-1
Fire Alarm Spec
Category L1 full addressable

TMV3
Thermostatic Controls
Anti-scald water safety (Reg 15)

1.0 CLAUSE-BY-CLAUSE STATUTORY FULFILLMENT REGISTER (REGULATIONS 4 TO 20)

This statutory fulfillment register details the operational, physical, and documentary evidence assembled by ADOV Care Group to satisfy each mandatory regulation under the Health and Social Care Act 2008 (Regulated Activities) Regulations 2014.

Table 6.1: Comprehensive Clause-by-Clause Statutory Fulfillment Register

Statutory Regulation	Statutory Objective	Operational Compliance Mechanism	Physical / Documentary Verification
Regulation 4	General Requirements	Operating provider must be legally incorporated and solvent	Certificate of Incorporation No. 14289650; 5-yr P&L model
Regulation 5	Fit and Proper: Directors	Ensure board directors have clean records and professional standing	Director declarations, bankruptcy search, enhanced DBS on all board members
Regulation 6	Nominated Individual	Appoint senior executive director to supervise care provision	Board appointment resolution; CQC validation interview portfolio
Regulation 7	Registered Manager	Appoint qualified, competent day-to-day manager of the service	Level 5 Diploma in Leadership for Adult Care; 5-yr reference trail
Regulation 9	Person-Centred Care	Deliver care tailored to individual preferences, needs, and autonomy	Comprehensive PBS plans; sensory profiles; communication passports
Regulation 10	Dignity and Respect	Treat service users with respect, privacy, and full human dignity	Private lockable bedrooms; confidential care logs; dignity champions
Regulation 11	Need for Consent	Ensure valid lawful consent or adherence to MCA 2005 principles	MCA two-stage capacity assessments; Best Interests decision forms
Regulation 12	Safe Care and Treatment	Prevent risks to health and safety, safe medication administration	MAR charts; BS 2881 medicine cabinet; clinical risk assessments

Table 6.1: Comprehensive Clause-by-Clause Statutory Fulfillment Register (Continued)

Statutory Regulation	Statutory Objective	Operational Compliance Mechanism	Physical / Documentary Verification
Regulation 13	Safeguarding from Abuse	Zero tolerance for abuse, improper treatment, or unlawful restraint	Section 42 safeguarding protocol; Luton SAB liaison; whistleblowing line
Regulation 14	Meeting Nutritional Needs	Provide balanced, culturally suitable, and nutritionally rich meals	Sensory meal menus; hydration logs; Speech & Language therapy plans
Regulation 15	Premises and Equipment	Ensure clean, safe, suitable, and well-maintained physical environment	TMV3 anti-scald valves; BS 5839-1 L1 alarm; DDA ramps; Part E soundproofing
Regulation 16	Receiving Complaints	Establish accessible, transparent complaints handling procedure	Easy-Read complaints policy; statutory 28-day resolution timeframe
Regulation 17	Good Governance	Operate robust auditing, quality assurance, and risk management systems	Monthly RM governance dashboard; quarterly NI audits; annual mock CQC
Regulation 18	Staffing Ratios & Training	Maintain sufficient numbers of suitably qualified, competent staff	Shared rota (1 TL, 4 Day Support, 1 Waking Night, 1 Sleep-in); Oliver McGowan certs
Regulation 19	Fit and Proper: Staff	Execute robust pre-employment vetting prior to client contact	Enhanced DBS with barred list checks; 2 verified references; employment history
Regulation 20	Duty of Candour	Maintain complete openness and transparency when safety incidents occur	Statutory Duty of Candour SOP; written family notification within 10 days

2.0 PHYSICAL PROPERTY, ENGINEERING & HEALTHCARE STANDARDS AUDIT

To achieve seamless compliance with Regulation 15 (Premises and Equipment) and Building Regulations Approved Documents, the physical layout across 78 and 80 Marston Gardens has been engineered to exacting clinical and accessibility benchmarks.

Table 6.2: Physical Infrastructure & Building Compliance Specifications

Infrastructure Element	CQC / Statutory Standard	ADOV Specification (78 & 80 Marston)	Operational Impact
Bedroom Dimensions	Min 10.0m² (Supported Living) / 12.0m² (CQC)	All 8 bedrooms range from 12.5m² to 16.0m²	Generous space for sensory zoning and mobility aids
Sanitary Ratios	Min 1 accessible bathroom per 3 residents	78: 1 ensuite, 1 large wetroom, 1 sep WC; 80: 1 wetroom, 1 WC	Full non-slip wetrooms; TMV3 thermostatic safety controls
Acoustic Separation	Building Regs Part E (Sound Insulation)	Soundbloc plasterboard & acoustic insulation on party walls	Prevents sensory escalation between bedrooms and lounges

Table 6.2: Physical Infrastructure & Building Compliance Specifications (Continued)

Infrastructure Element	CQC / Statutory Standard	ADOV Specification (78 & 80 Marston)	Operational Impact
Fire Detection	BS 5839-1 Category L1 (Full Protection)	Addressable optical smoke & heat detectors in all spaces	Early warning system directly linked to central alarm panel
Fire Compartmentation	Approved Document B / RRO 2005	FD30S fire-resisting doors with intumescent smoke seals	Maintains 30-minute protected escape corridors
Emergency Lighting	BS 5266-1 (Maintained Escape Lighting)	3-hour battery-backed LED luminaires along escape routes	Ensures safe night-time evacuation in total power failure
Medication Storage	BS 2881 Controlled Drugs Standard	Steel CD cabinet bolted to solid brick wall with dual locks	Compliant with Misuse of Drugs (Safe Custody) Regs 1973

3.0 MANDATORY STAFF TRAINING & COMPETENCY FRAMEWORK

Under Regulation 18, all care and management staff undergo a rigorous mandatory training curriculum prior to delivering independent personal care, fully aligning with Skills for Care standards and the Oliver McGowan Code of Practice.

Mandatory Staff Training & Certification Register

OLIVER MCGOWAN TIER 1 & 2

Mandatory under Health & Care Act 2022. 100% of staff certified in Autism & Learning Disability awareness.

THE CARE CERTIFICATE

All new support workers complete the 15 standards of the Care Certificate within 12 weeks of appointment.

SAFEGUARDING ADULTS LEVEL 2/3

Recognising signs of physical, psychological, sexual, and financial abuse; reporting procedures.

POSITIVE BEHAVIOUR SUPPORT (PBS)

BILD-accredited training in low-arousal de-escalation, proactive strategies, and human rights.

SAFE ADMINISTRATION OF MEDICINES

Theoretical and practical training; 3 shadow assessments required before unsupervised administration.

MENTAL CAPACITY ACT & DOLS

Understanding presumption of capacity, least restrictive principles, and lawful authorisations.